

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
YSIDORA GARCIA,

Plaintiff,

-against-

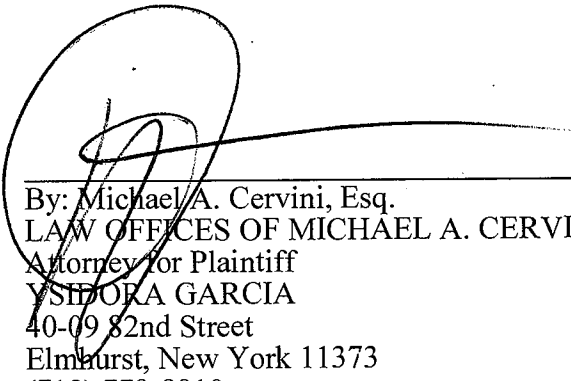
THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER DAVID TO, SHIELD 12500,Defendants.
-----X

Filed: _____

INDEX NO.

Plaintiff designates New
York County as the place of
trial.**S U M M O N S**The basis of venue is
Plaintiff's residence.**TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this summons to serve a notice of appearance on the Plaintiff's attorney within twenty (20) days after the service of this summons exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Queens, New York
July 1, 2015
By: Michael A. Cervini, Esq.
LAW OFFICES OF MICHAEL A. CERVINI
Attorney for Plaintiff
YSIDORA GARCIA
40-09 82nd Street
Elmhurst, New York 11373
(718) 779-8910
Our File No.: 10807**DEFENDANTS' ADDRESSES:**THE CITY OF NEW YORK
100 Church Street
New York, New YorkNEW YORK CITY POLICE OFFICER DAVID TO, SHIELD 12500
100 Church Street
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
YSIDORA GARCIA,

Plaintiff,

INDEX NO.

COMPLAINT

-against-

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER DAVID TO, SHIELD 12500,

Defendants.
-----X

Plaintiff, by her attorney, MICHAEL A. CERVINI, P.C., complaining of the defendant(s)
herein states and alleges as follows:

1. That at all times hereinafter mentioned, the plaintiff, YSIDORA GARCIA, was and still is a resident of the County of New York, City and the State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, is a municipal corporation, authorized to do business within the City and State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER DAVID TO, SHIELD 12500, was and still is a resident of the City and State of New York and working for THE CITY OF NEW YORK.

AS AND FOR A FIRST CAUSE OF ACTION

4. On June 23, 2015, the Supreme Court of New York under Index 158190/2014, Garcia v. New York City Police Department and The City of New York, granted plaintiff leave to file a late Notice of Claim regarding an accident involving the plaintiff.

5. The plaintiff served a Notice of Claim on October 28, 2014 and then again on June 30, 2015.

6. The Notice contained;

- a. The name and post office address of each claimant, and of his attorney.
- b. The nature of the claim.
- c. The time when, the place where and the manner in which the claim arose.

d. The items of damage or injuries claimed to have been sustained so far as then practicable.

7. That this section has been commenced within one year and ninety days after the cause of action herein arose.

8. That on April 11, 2014, the plaintiff, YSIDORA GARCIA was assaulted, battered and falsely arrested and imprisoned by New York City Police officer(s). Said incident taking place outside the plaintiff's apartment complex at the Wagner Housing Projects in the park area and walkway.

9. That the plaintiff sustained physical injuries and psychological injuries and violation of her civil rights when she was assaulted by police officers under the employment and supervision of the defendants.

10. That said attack on the plaintiff was caused due to the defendants' negligence in the negligent hiring, supervision training and retention of their employees.

11. The defendants were negligent in failing to properly train employees, to supervise employees and to properly retain employees.

12. Said negligence consisted of the failure to provide minimal precautionary safety measures to prevent the attack from occurring.

13. Plaintiff's statutory and constitutional rights were violated.

14. The defendant(s) had knowledge of their employees' prior propensity in this regard and failed to take proper steps to safeguard the plaintiff.

15. The defendant(s) were negligent in the hiring and supervision and retention of their employees who assaulted the plaintiff.

16. The defendant(s) were negligent in the procedures in place at the above location in allowing the plaintiff to be assaulted by the defendant(s)' employees.

17. The defendant(s)' employees were acting within the scope of their actual, implied and apparent authority and in furtherance of their employer's business.

18. The plaintiff was in no position to object.

19. As a result, the plaintiff was physically and psychologically injured; the plaintiff has

suffered personal injuries; the plaintiff has suffered the loss of dignity and privacy; has become the object of scorn and self-loathing; is afraid to be in the presence of law enforcement officers; has become distrustful of officers and is unable to function as a normal human being and sustained financial loss and incurred medical and psychological bills all to her damage in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

20. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

21. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "20" as if fully set forth herein.

22. The plaintiff was assaulted on April 11, 2014.

23. Said assault was intentional and took place based upon excessive force and the defendant(s) had no reason to justify said force.

24. Said assault to the plaintiff by the defendant(s) was within the scope of their actual, implied and apparent authority as City of New York and New York City Police Department.

25. Said assault took place in furtherance of the defendants' business.

26. As a result, plaintiff was harmed and injured and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

27. As a result of said assault and intentional acts, the plaintiff is entitled to punitive damages and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

28. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

29. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1"

through "28" as if fully set forth herein.

30. The plaintiff was assaulted, battered, pushed, handcuffed on April 11, 2014, by Defendant, NEW YORK CITY POLICE OFFICER DAVID TO, SHIELD 12500.

31. Said battery was intentional and took place based upon excessive force and these defendant(s) had no reason to justify said force.

32. Said battery to the plaintiff by this individual defendant was acting within the scope of its actual, implied and apparent authority as New York City Police Officer.

33. Said battery, assault, pushing and handcuffing took place in furtherance of the defendants' business.

34. As a result, plaintiff was harmed and injured all to her damage and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

35. As a result of said assault and intentional acts, the plaintiff is entitled to punitive damages demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

36. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

37. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "36" as if fully set forth herein.

38. Defendant(s) police officers arrested and confined the plaintiff.

39. Said arrest and confinement was without plaintiff's consent.

40. Said arrest and confinement occurred without probable cause.

41. Plaintiff was aware of said arrest and confinement.

42. As a result, plaintiff was harmed and injured all to her damage and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein,

altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

43. As a result of said intentional conduct, plaintiff has been damaged and are entitled to punitive damages and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN FIFTH CAUSE OF ACTION

44. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "43" as if fully set forth herein.

45. At all times hereinafter mentioned, the defendant(s) operates and controls an agency known as the New York City Police Department.

46. The plaintiff's basis for jurisdiction 42 U.S.C.A 1983 and 42 U.S.C.A. 1985 (3); U.S. and NYS Constitution and the 4th, 8th and 14th Amendments of the U.S. Constitution.

47. At all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, operates and controls as agency known as the New York City Police Department.

48. That on April 11, 2014, the plaintiff, YSIDORA GARCIA, was assaulted, battered and falsely arrested and imprisoned by members of the New York City Police Department.

49. At all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER DAVID TO, SHIELD 12500, its employee(s) and/or agents was acting under color of authority as members of the New York City Police Department.

50. At all times hereinafter mentioned the defendant, NEW YORK CITY POLICE OFFICER DAVID TO, SHIELD 12500, its employee(s) and/or agents subjected the plaintiff to a deprivation of her rights and privileges secured and protected by the Constitution and Laws of the United States and namely the right not to be deprived of the liberty and due process of law, or subjected to unreasonable search; the right to be free from the use of excessive force against this person.

51. At all times hereinafter mentioned, the defendant(s), its employee(s) and/or agents

subjected the plaintiff to arrest without due process of law, without probable cause and in violation of the US and NYS Constitution 4th, 8th and the 14th Amendment 42 USCA 1983 and 42 USCA 1985(3).

52. At all times hereinafter mentioned, the defendant(s), its employee(s) and/or agents used unreasonable force against the plaintiff in violation of the US and NYS Constitution, 4th, 8th and 14th Amendment and 42 USCA 1983 and 42 USCA 1985(3).

53. The defendant(s) are guilty of arresting the plaintiff without probable cause in violation of the aforesaid laws.

54. The defendant(s) are guilty of subjecting the plaintiff to an unlawful search in violation of the aforesaid laws.

55. The defendant(s) are guilty of subjecting the plaintiff to the use of excessive force during the arrest in violation of the aforesaid laws.

56. The above acts by the defendant(s) its, employee(s) and/or agents was done under the law with color of law in that the defendant(s), its employee(s) and agents were purporting to act in their official capacity in furtherance of the defendant(s)' business and abused and misused their power as officials of the defendant(s).

57. Such acts would not have occurred but for the employee(s) and agents being officials of the defendant(s).

58. At all times hereinafter mentioned, the defendant(s) through its employee(s) and agents, acting under color of law and in furtherance of their duties, were responsible for the implementation; enforcing; following through and carrying acts of certain customs practices and policies which resulted in the illegal search, illegal arrest and abuse of force as to the plaintiff, YSIDORA GARCIA.

59. Said costumes, practices and policies were in violation of the US and NYS Constitution 4th, 8th and the 14th Amendment 42 USCA 1983 and 42 USCA 1985(3) in how they applied to the plaintiff and as to how they applied to plaintiff as a minority in her housing project.

60. Said customs practices and policies of the defendant(s) were condoned and resulted

in pattern of conduct by defendant(s)' employee(s) and agents towards persons of Hispanic heritage in violation of the aforesaid law.

61. As a result the plaintiff, YSIDORA GARCIA, was injured to her damage and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

62. As a result of the above intentional, abusive and reckless acts by the defendant(s) punitive damage and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE SIXTH CAUSE OF ACTION

63. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "62" as if fully set forth herein.

64. The plaintiff was arrested without due process of law and was arrested by the defendant(s), its employee(s) and agents beyond the limits of their lawful authority but the defendant(s) were using their apparent authority.

65. The plaintiff was arrested without probable cause or a reasonable belief that a criminal offense was being committed.

66. It was unreasonable for the defendant(s), its employee(s) and agents to believe that any crime was being committed by the plaintiff.

67. During the cause of the alleged valid arrest, the plaintiff was subjected to excessive and undue force.

68. Based upon the circumstances that existed, it was unreasonable and outrages of the defendant(s), its agents and employee(s) to have used the force they did on the plaintiff.

69. Said acts were in violation of the US and NYS Constitutions 4th, 8th and 14th Amendment and 42 USCA 1983 and 42 USCA 1985 (3).

70. The officers involved in the arrest were authorized by their superior(s).

71. These superior officers authorized, approved and knowingly acquiesced in the arresting officer(s) above conduct towards the plaintiff which they knew or reasonably should have known would result in a violation of plaintiff constitution rights as outlined above.

72. Said unlawful arrest and excessive and undue force resulted in the Plaintiff being injured all to her damage and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

73. As a result of the above intentional, abusive and reckless acts by the defendant(s) punitive damages and demands judgment against the defendant(s) in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE SEVENTH CAUSE OF ACTION

74. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "73" as if fully set forth herein.

75. The defendant(s) have violated the civil rights of the plaintiff in engaging in a pattern of stopping and accosting person(s) in housing projects without reasonable suspicions of criminal activity or probable cause.

76. The plaintiff was one such person.

77. The plaintiff was stopped by the defendant(s) under color of authority without reasonable suspicions or probable cause of criminal activity under color of authority.

78. Said stop was therefore illegal.

79. As a result of said illegal stop plaintiff was then battered by the defendant(s) and was falsely arrested and imprisoned and plaintiff did not consent to said imprisonment.

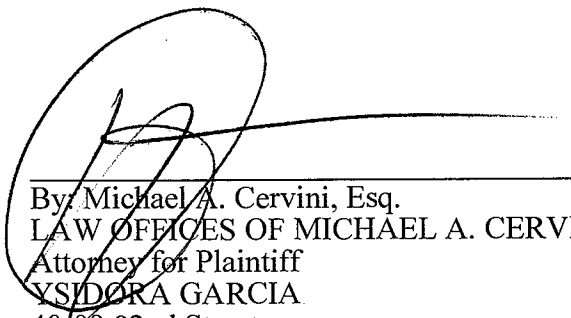
80. The defendant(s) used excessive force during the arrest.

81. All of the above actions violated plaintiff's rights per the US and NYS Constitutions

4th, 8th and 14th Amendment and 42 USCA 1983 and 42 USCA 1985 (3).

WHEREFORE, the plaintiff demands judgment against the defendant(s) in the First Cause of Action, in the Second Cause of Action, in the Third Cause of Action, in the Fourth Cause of Action, in the Fifth Cause of Action, in the Sixth Cause of Action and Seventh Cause of Action, in amounts commensurate with the injuries and damages sustained herein, altogether with the costs and disbursements of this action, in an amount that exceeds the jurisdictional limits of all lower courts.

Dated: Queens, New York
July 1, 2015



By: Michael A. Cervini, Esq.
LAW OFFICES OF MICHAEL A. CERVINI
Attorney for Plaintiff
YSIDORA GARCIA
40-09 82nd Street
Elmhurst, New York 11373
(718) 779-8910
Our File No.: 10807